

Bhola v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 December 2012 · Writ-C No. 65968 of 2012 · **Writ disposed; relegated to EE complaint under cl. 6.5**

HEADNOTE

A consumer challenging an electricity bill in writ is relegated to a complaint before the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005; if an appropriate complaint is filed, it shall be considered and disposed of expeditiously, preferably within one month of a certified copy of the order.

FACTUAL SUMMARY

Bhola, a consumer, challenged in writ an electricity bill dated 28 August 2012 for Rs. 39,968. He had already submitted an application dated 12 October 2012 to the Chief Engineer against that bill. Counsel for the distribution licensee (respondents 2 to 4) submitted that the petitioner's remedy was to file a complaint before the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, and that such a complaint would be considered and an appropriate decision taken.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

A consumer aggrieved by an electricity bill is to pursue a complaint before the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005; the writ court will not decide the bill and will direct that if an appropriate complaint is filed, the Executive Engineer shall consider and dispose of it expeditiously, preferably within one month of a certified copy of the order. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 28.8.2012 FOR RS. 39,968

Left to the Executive Engineer on a complaint under paragraph 6.5. ¶ 4